

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Adrian Legaspi	Team: Team # 4	CCRB Case #: 201307960	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/23/2013 6:40 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/23/2015	Precinct: 83		
Date/Time CV Reported Thu, 08/29/2013 12:28 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 08/29/2013 12:28 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Ian Cyrus	02768	932510	NARCBBN
2. DT3 Julio Micheli	02782	937106	NARCBBN
3. DT3 Thomas Lodico	00455	938868	NARCBBN
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT James Cahill	00220	901263	NARCBBN
2. DT3 Lorne Kanover	01824	936842	NARCBBN
3. DT2 Waliur Rahman	06428	907113	NARCBBN
4. CPT Fernando Guimaraes	00000	915848	NARCBBN
5. DT3 Paul Martin	02288	938946	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Julio Micheli	Force: Det. Julio Micheli pointed his gun at § 87(2)(b)	A . Unsubstantiated
B . DT3 Julio Micheli	Abuse: Det. Julio Micheli stopped § 87(2)(b)	B . Exonerated
C . DT3 Julio Micheli	Abuse: Det. Julio Micheli frisked § 87(2)(b)	C . Substantiated
D . DT3 Julio Micheli	Abuse: Det. Julio Micheli searched § 87(2)(b)	D . Substantiated
E . DT3 Ian Cyrus	Abuse: Det. Ian Cyrus entered and searched § 87(2)(b) in Brooklyn.	E . Exonerated
F . Officers	Discourtesy: Officers spoke rudely to § 87(2)(b) and § 87(2)(b)	F . Officer(s) Unidentified
G . DT3 Thomas Lodico	Force: Det. Thomas Lodico stepped on § 87(2)(b) s finger.	G . Unsubstantiated
H . DT3 Ian Cyrus	Discourtesy: Det. Ian Cyrus spoke rudely to § 87(2)(b)	H . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB over the phone on August 29, 2013 (encl.). On August 23, 2013, at approximately 6:40 p.m. officers executed a search warrant at § 87(2)(b) in Brooklyn. The following allegations resulted:

Allegation A- Force: Det. Julio Micheli pointed his gun at § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegation A be closed as Unsubstantiated.**

Allegation B- Abuse of Authority: Det. Julio Micheli stopped § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegation B be closed as Exonerated.**

Allegation C- Abuse of Authority: Det. Julio Micheli frisked § 87(2)(b)

Allegation D- Abuse of Authority: Det. Julio Micheli searched § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegations C and D are closed as Substantiated.**

Allegation E- Abuse of Authority: Det. Ian Cyrus entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(g) it is recommended that **Allegation E be closed as Exonerated.**

Allegation F- Discourtesy: Officers spoke rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegation F be closed as Officers Unidentified.**

Allegation G-Force: Det. Thomas Lodico stepped on § 87(2)(b)'s finger.

§ 87(2)(g) it is recommended that **Allegation G be closed as Unsubstantiated.**

Allegation H-Discourtesy: Det. Ian Cyrus spoke rudely to § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegation H be closed as Unsubstantiated.**

This case was not eligible for mediation.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) old black male, § 87(2)(b), with black hair and brown eyes. § 87(2)(b)

CCRB Statement

On September 19, 2013, § 87(2)(b) was interviewed at the CCRB (encl.77-81). At approximately 6:40 p.m. on August 23, 2013, § 87(2)(b) was standing on the sidewalk outside of a Chinese restaurant located § 87(2)(b) in Brooklyn. § 87(2)(b) stood on the sidewalk for about twenty minutes, talking to a Hispanic man nicknamed § 87(2)(b) and a younger black man with braids. § 87(2)(b) did not know the full names of either men.

At § 87(2)(b) there is also a store called “§ 87(2)(b)”. As § 87(2)(b) stood in front of the Chinese restaurant, two Hispanic males – one named § 87(2)(b) the other unidentified – brought sheets of Plexiglass into § 87(2)(b) from a black vehicle parked in front of the store. Inside of § 87(2)(b) was a female named § 87(2)(b) and a male named § 87(2)(b). Besides § 87(2)(b) § 87(2)(b) and the two Hispanic males, there were no other people inside of § 87(2)(b) at the time of the incident.

In § 87(2)(b)'s right front pocket was an Altoid can, in his back left pocket was a black wallet case, in his back right pocket were his keys, and in his front left pocket was his cell phone.

After standing on the sidewalk for approximately twenty minutes, § 87(2)(b) saw approximately seven police officers wearing DEA jackets turn westbound onto Bushwick Avenue from Kossuth Place. The officers were on foot, running at full speed with their guns drawn. As the officers approached § 87(2)(b) they yelled for everybody to “get down.” § 87(2)(b) remained standing. Det. Julio Micheli, whom § 87(2)(b) described as a slightly balding stocky 5’9” tall white male in his mid-thirties, put the barrel of his gun against § 87(2)(b)'s head. Det. Micheli pushed § 87(2)(b) to the ground. § 87(2)(b) did not fall, but went down to the ground with Det. Micheli.

Det. Micheli picked § 87(2)(b) up and handcuffed him. Det. Micheli then patted down § 87(2)(b)'s outside clothing. After patting § 87(2)(b) down, Det. Micheli searched all four of § 87(2)(b)'s pants’ pockets. Det. Micheli walked § 87(2)(b) to the front stoop of § 87(2)(b) and sat him down on the steps. § 87(2)(b) could not see what was happening inside of § 87(2)(b).

As § 87(2)(b) sat on the steps, Det. Thomas Lodico, whom § 87(2)(b) described as a white muscular male officer wearing a white shirt, with short spiky black hair and standing 6’3” tall, stepped on § 87(2)(b)'s fingers. § 87(2)(b) alerted Det. Lodico to this, and Det. Lodico got off of his fingers and apologized. § 87(2)(b) believed that Det. Lodico stepped on his fingers on purpose. Det. Lodico told § 87(2)(b) to “shut up” repeatedly throughout the incident.

§ 87(2)(b) verbally protested as he sat handcuffed on the steps of § 87(2)(b). When § 87(2)(b) talked about his “sovereign rights,” Det. Ian Cyrus, whom § 87(2)(b) described as a black male with a fuzzy mustache, told § 87(2)(b) “Sovereign? Spell sovereign. He can’t spell sovereign, he has a benefits card.”

Det. Micheli came out of § 87(2)(b) and told the officers to move § 87(2)(b) into a prisoner van. Officers also took § 87(2)(b) and § 87(2)(b) out of § 87(2)(b) and put them into the prisoner van. The two Hispanic men who parked the black vehicle in front of § 87(2)(b) were also handcuffed, but were eventually released.

Witness: § 87(2)(b)

- § 87(2)(b) did not provide her pedigree information.

Phone Statement

§ 87(2)(b) provided a phone statement on September 25, 2013 (encl.76). § 87(2)(b) was working at the front desk of § 87(2)(b), located at § 87(2)(g), § 87(2)(b) in Brooklyn. There were two unknown males outside of her store. The males were not doing anything except chatting. Suddenly, several officers appeared and told the males to get down on the ground. They complied. § 87(2)(b) did not see if the officers were holding anything in their hands or had their guns out. The officers arrested these men. These officers closed the shutter of § 87(2)(b) a store located next door at § 87(2)(b). Since the incident, § 87(2)(b) has sold the restaurant. All the employees who were working at the time of the incident have since left. The store had no video footage at the time of incident.

Field Work (encl.83)

On October 25, 2013, the undersigned investigator went to § 87(2)(b) and interviewed § 87(2)(b) (encl. 87-89). The undersigned investigator left please call letters at the store and requested that § 87(2)(b) have § 87(2)(b) and § 87(2)(b) as well as any other witnesses contact the investigator.

The investigators then went to the Chinese restaurant located at § 87(2)(b). The current owners of the store, who did not provide their names, confirmed that it was under new management, and that all of the employees currently employed there started on September 11, 2013.

Victim/Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) old black female, § 87(2)(b) with brown hair and brown eyes. § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed inside of § 87(2)(b) located at § 87(2)(b) on October 25, 2013 (encl.87-89). On August 23, 2013, at approximately 6:40 p.m., § 87(2)(b) was working as a store clerk at § 87(2)(b). § 87(2)(b) is a small convenience store. The store was under construction and several people were coming in and out. Besides § 87(2)(b) the store's owner § 87(2)(b) was present. There were also at least two workers going in and out of the store. § 87(2)(b) did not know their names. At least one customer was also present, but § 87(2)(b) did not know that individual.

Several officers came rushing into the business with their guns drawn. The officers had their guns pointed at various people inside of the store. § 87(2)(b) could not describe any of these officers. They began shouting, "Everybody get the fuck down on the floor." Everybody in the store immediately complied. The officers stated that they had a warrant and were looking for marijuana.

The officers began to "trash" the store. The officers were taking products off of the shelves and walls and throwing them to the ground. § 87(2)(b) was sitting on the front step of § 87(2)(b) as the officers searched § 87(2)(b). § 87(2)(b) explained to various officers that they had no reason to arrest him because he was not actually inside of the store when the officers came in. An officer identified by the investigation as Det. Thomas Lodico told § 87(2)(b) to "Shut the fuck up" and told another officer "put his ass in handcuffs." § 87(2)(b) described Det. Lodico as a white male, standing 5'10" tall, in his mid-20s to early 30s, with blue eyes, and a medium build.

§ 87(2)(b) could not elaborate on what kind of conversation was had between § 87(2)(b) and the officers because she was on the ground and was overwhelmed by the situation.

§ 87(2)(b) did not see any officer step on § 87(2)(b)'s hand and did not hear him complain of his hand being stepped on. § 87(2)(b) could not attest to whether or not any officer pointed their guns at § 87(2)(b).

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) old Hispanic male, § 87(2)(b) with brown hair and brown eyes. § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at § 87(2)(b) on October 25, 2013 (encl.84-86). § 87(2)(b) was standing in the doorway of his business, located at § 87(2)(b), when he saw approximately seven to eight officers exit a nearby van and run towards § 87(2)(b). In this group, there was at least one short black officer, several white officers and one taller officer. As the officers walked towards § 87(2)(b) their guns remained holstered. § 87(2)(b) did not see any officer draw their guns at any point. The officers did not say anything as they approached § 87(2)(b). The officers entered the store, brought three men outside, searched them, handcuffed them, and placed them in a van. § 87(2)(b) could not hear any conversation between the officers and the civilians inside or directly outside of § 87(2)(b).

NYPD Statements:

Subject Officer: DET. IAN CYRUS

- Det. Cyrus is a § 87(2)(b) old black male, § 87(2)(b), with a bald head and brown hair.
- On August 23, 2013, Det. Cyrus worked from 3:00 p.m., until 11:33 p.m. Det. Cyrus' command is Brooklyn North Narcotics and was the arresting officer on that day.

Memo Book (encl.102-104)

5:35 p.m. En route to § 87(2)(b) in regards to search warrant § 87(2)(b) 4:45 p.m. § 87(2)(b) executed 1 arrested front of § 87(2)(b) 2 Arrested inside of § 87(2)(b) 5:35 p.m. location secured en route to § 87(2)(b)

Arrest Report s (encl.90-92)

Det. Cyrus prepared the arrest reports for § 87(2)(b) and

§ 87(2)(b). § 87(2)(a) 160.50

is the same for all three reports.

Criminal Court Complaint (encl. 154)

§ 87(2)(a) 160.50

CCRB Statement

Det. Cyrus was interviewed at the CCRB on March 7, 2014 and November 5, 2014 (encl.105-109). On August 23, 2013 at approximately 6:35 p.m. Det. Cyrus was en route to § 87(2)(b) in Brooklyn, with the 83rd Precinct field team to execute a search warrant at a variety store called § 87(2)(b).

All the officers exited the vehicle at the same time. Det. Cyrus saw a detective observing the entrance of § 87(2)(b). Next to this detective was a male, identified as § 87(2)(b). § 87(2)(b) was not known to Det. Cyrus' investigation. He was not linked to § 87(2)(b). The search warrant authorized the officers to search for marijuana.

§ 87(2)(b) was standing near the doorway of § 87(2)(b) when the officers approached the location. Det. Cyrus had his shield out and his gun drawn. His gun was likely pointed at § 87(2)(b) at some point. Det. Cyrus denied placing the barrel of his gun against § 87(2)(b)'s head. In his second statement, Det. Cyrus stated that he did not recall placing the barrel of his gun against § 87(2)(b)'s head. Det. Cyrus did not observe if § 87(2)(b) had any bulges or weapons on his body as he was concentrated on getting into § 87(2)(b).

Upon seeing the officers, § 87(2)(b) moved out from the doorway. § 87(2)(b) did not attempt to physically obstruct Det. Cyrus from entering the location. However, in his second statement, Det. Cyrus said that § 87(2)(b) had to be physically moved in order to enter the location. Det. Cyrus did not know who moved § 87(2)(b). § 87(2)(b) was moved to the right so that the officers' entry was not obstructed. § 87(2)(b) was not pushed to the ground.

§ 87(2)(b) was handcuffed because, "Everyone is put in handcuffs just to detain and secure the location." Det. Cyrus did not recall who handcuffed § 87(2)(b).

Det. Cyrus went into § 87(2)(b) and shouted, "Police, search warrant! Search warrant!" He did not recall saying, "Get the fuck down." § 87(2)(b) and § 87(2)(b) were inside of § 87(2)(b) along with a maintenance worker. Everyone in the store went down to the ground and were placed in handcuffs. After the location was searched, Det. Cyrus went outside and observed § 87(2)(b) in handcuffs on the ground. Det. Cyrus did not recall how long he was searching the location before he came back outside, but it was less than an hour.

§ 87(2)(b) was sitting on the ground near the front door. Det. Cyrus did not recall § 87(2)(b) mentioning anything about his sovereign rights. Det. Cyrus never asked § 87(2)(b) to spell the word "sovereign" nor did Det. Cyrus step on § 87(2)(b)'s finger.

Det. Cyrus did not see if § 87(2)(b) was initially frisked and searched. Det. Cyrus observed a tin on the ground next to § 87(2)(b) which he picked up and subsequently observed marijuana inside of. In his second statement, Det. Cyrus stated that when he came out of the store he observed § 87(2)(b) rear-handcuffed attempting to take an "Altoid can" out of his pocket, prompting him to frisk and search § 87(2)(b). Det. Cyrus recovered this can from the ground right near § 87(2)(b). When asked why he opened the Altoid tin, Det. Cyrus stated, "I am an investigator, that's what I would do. If he was trying to get rid of something I would open the can and see what it was. And if he is in handcuffs, whatever we recovered would be opened and checked to see what exactly it is." Prior to opening the can, Det. Cyrus had no idea of the contents.

After discovering the marijuana, Det. Cyrus searched § 87(2)(b). At no point during the incident did Det. Cyrus have any reason to believe that § 87(2)(b) was armed. Prior to and after the execution of the search warrant, Det. Cyrus never observed any bulges on § 87(2)(b) which appeared to be a weapon. Det. Cyrus never heard of § 87(2)(b) having a weapon.

Subject Officer: DET. JULIO MICHELI

- Det. Julio Micheli is a § 87(2)(b) old Hispanic male, standing 5'8" tall, weighing 210 pounds, with black hair and brown eyes.
- On August 23, 2013, Det. Micheli was assigned to the Brooklyn North Narcotics and was working with the 83rd Precinct Field Team Module in executing search warrants. Det. Micheli was in plainclothes and worked from 3:00 p.m. until 11:33 p.m. Det. Micheli was operating out of unmarked RMP #§ 87(2)(b) which he described as a Blue Dodge Minivan.

Memo Book (encl.111-112)

6:45 p.m. search warrant § 87(2)(b) executed at § 87(2)(b) Three under, two inside and one in front. 7:35 p.m. location secured.

CCRB Statement

Det. Micheli was interviewed at the CCRB on July 24, 2014 (encl.113-117). Det. Micheli had his weapon drawn as did the first four officers in the stack. Det. Micheli held his gun against his chest.

§ 87(2)(b) was standing outside of § 87(2)(b) § 87(2)(b) was in front of the front entrance, approximately five feet away from the door. § 87(2)(b) was known to Det. Micheli. Individuals who worked or otherwise had a connection with the store were identified prior to the execution of the warrant. § 87(2)(e), § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Det. Micheli approached § 87(2)(b) and stated, "Police, get down on the ground." Det. Micheli did not say "Get the fuck down." § 87(2)(b) complied. Det. Micheli pointed his weapon at § 87(2)(b). As Det. Micheli traversed the ten feet to § 87(2)(b) he holstered his weapon and handcuffed § 87(2)(b). Det. Micheli did not place his weapon directly against § 87(2)(b)'s head. Det. Micheli did not see any other officer do this. § 87(2)(b) was not under arrest but was handcuffed for security purposes until it was determined who he was. Det. Micheli stated, "Again, if the person is standing directly in front a drug prone location, we secure the person because to our knowledge or to our experience they are known to be lookouts. Sometimes they are armed, sometimes they are not. For public safety, and our safety, they are secured." Det. Micheli did see anything on § 87(2)(b) which appeared to be a weapon and did not observe any bulges. § 87(2)(b) was lying down, so Det. Micheli could not see any shapes or bulges that may have been in § 87(2)(b)'s pockets.

Det. Micheli assisted § 87(2)(b) in standing up. Det. Micheli asked § 87(2)(b) if he had any weapons or anything sharp in his pockets and § 87(2)(b) said no. Det. Micheli frisked § 87(2)(b) and recovered a hard metal container which could have been an Altoid can from § 87(2)(b)'s pocket. The frisk was for safety reasons and because it is procedure and because of § 87(2)(b)'s involvement in the active investigation of § 87(2)(b). Det. Micheli gave the container to Det. Martin and then went into § 87(2)(b). Det. Martin later determined that the container had marijuana in it.

After the marijuana was recovered, § 87(2)(b) was deemed to be under arrest. § 87(2)(b) § 87(2)(b) "began to go off with the mouth" when the officers discovered the marijuana. § 87(2)(b) § 87(2)(b) said that he was "a sovereign citizen," and that Det. Micheli was "there" to take his job and his women. Det. Micheli did not verbally respond to § 87(2)(b). Det. Micheli did not ask § 87(2)(b) to spell the word sovereign. Det. Micheli did not hear any other officer do so. Det.

Micheli did not recall any conversation regarding § 87(2)(b) possessing a benefits card. § 87(2)(b) did not complain of an officer stepping on his finger.

As Det. Micheli handcuffed § 87(2)(b) Det. Cyrus entered the location with the rest of the field team. Det. Micheli heard the officer say, “Police, Search Warrant!” but did not hear any officer say, “Get the fuck down.”

Witness Officer: DET. LORNE KANOVER

- *Det. Lorne Kanover is a § 87(2)(b) old white male, § 87(2)(b), with brown hair and brown eyes.*
- *On August 23, 2013, PO Kanover worked from 5:00 p.m. until 1:33 a.m. on August 24, 2013. PO Kanover’s command was Brooklyn North Narcotics. PO Kanover was a detective investigator assigned to executing two search warrants with the 83rd Precinct Field Team. PO Kanover was operating out of an unmarked RMP.*

Memo Book (encl.119-120)

6:35 p.m. en route to § 87(2)(b) 6:45 p.m. Search warrant executed 2 under arrest inside of § 87(2)(b) One under arrest in front of § 87(2)(b)

CCRB Statement

Det. Kanover was interviewed at the CCRB on May 23, 2014 (encl.121-123) There was one individual in front of § 87(2)(b) near the front door. Det. Kanover did not take any specific action in regards to this individual. Det. Kanover believed that this individual was placed under arrest. Det. Kanover did not recognize the arrest photo of § 87(2)(b)

Det. Kanover did not have his weapon out when he entered the location. Det. Kanover surmised that other officers had their guns out. Upon entering the location, Det. Kanover said, “Police.” Det. Kanover did not hear any officers say, “Get the fuck down.”

Det. Kanover did not hear any officer speak with § 87(2)(b) or mention the word “sovereign” nor did he see any officers’ point their weapons at § 87(2)(b)

Det. Kanover did not know why § 87(2)(b) was arrested and did not personally observe anything for which he could have been arrested, outside of the search warrant. Det. Kanover did not observe contraband on or near § 87(2)(b) nor did see an officer step on § 87(2)(b) s finger.

Subject Officer: DET. THOMAS LODICO

- *Det. Thomas Lodico is a § 87(2)(b) old white male, standing 6’0” tall, weighing 240 pounds, with black hair and brown eyes.*
- *On August 23, 2013, PO Lodico’s command was Brooklyn North Narcotics. PO Lodico worked with the 83rd Field Team executing search warrants. PO Lodico was assigned to “cuff and toss.” PO Lodico was working in plainclothes from 5:00 p.m. until 1:33 a.m. on August 24, 2013. PO Lodico was operating out of unmarked vehicle.*

Memo Book (encl.125-126)

6:30 p.m. Search warrant § 87(2)(b) 6:45 p.m. Arrived at location, search warrant executed, three under arrest.

CCRB Statement

Det. Lodico was interviewed at the CCRB on May 23, 2014 (encl.127-129). Several individuals were outside of the location. Det. Lodico did not recognize § 87(2)(b)'s arrest photo. Det. Lodico did not see any officers point their weapons at individuals outside of § 87(2)(b). Det. Lodico did not point his weapon at any of these individuals.

Upon entering § 87(2)(b) Det. Lodico did not hear any officers say, "Get the fuck down" or use any profanity.

Det. Lodico did not recall seeing § 87(2)(b) in handcuffs outside of § 87(2)(b) after the warrant was executed, nor did he recall any officer asking § 87(2)(b) about a benefits card or to spell the word sovereign. Det. Lodico did not see an officer step on § 87(2)(b)'s finger.

Witness Officer: DET. WALIUR RAHMAN

- *Det. Waliur Rahman is a § 87(2)(b) old Bangladeshi male, § 87(2)(b) with brown hair and brown eyes.*
- *On August 23, 2013, Det. Rahman's command was Brooklyn North Narcotics. Det. Rahman worked in plainclothes from 2:00 p.m. until 10:33 p.m.. Det. Rahman worked with the 83rd Precinct module in executions of search warrants.*

Memo Book (encl.137-138)

7:00 p.m. Three under Bushwick Avenue (store).

CCRB Statement

Det. Rahman was interviewed at the CCRB on May 29, 2014 (encl.139-141). Before the date of the warrant, Det. Rahman had no prior knowledge of § 87(2)(b). § 87(2)(b) was cursing and yelling throughout the incident.

The officers yelled out, "Police, search warrant!" Det. Rahman did not hear any officers say, "Police, get the fuck down!" or use any profanity. The officers had their guns drawn as they entered the location, but he did not know which officers specifically had their guns drawn. Det. Rahman did not see any officer point their weapons at any individuals or place the barrel of their gun against § 87(2)(b)'s head.

Officers were speaking with § 87(2)(b) but Det. Rahman did not recall which ones or what they were saying. Det. Rahman did not hear Det. Cyrus speak with § 87(2)(b) in regards to a benefits card or ask him to spell the word sovereign. Det. Rahman did not see an officer step on § 87(2)(b)'s finger. Det. Rahman did not hear § 87(2)(b) complain of any officer stepping on his finger.

Witness Officer: DET. PAUL MARTIN

- *Det. Paul Martin was a § 87(2)(b) old white male, § 87(2)(b), with red hair and brown eyes.*
- *On August 23, 2013, Det. Martin's command was Brooklyn North Narcotics. Det. Martin was assigned to the 83rd Precinct Narcotics Field Team which was executing search warrants. Det. Martin was working in plainclothes (however the uniform was marked with the words police) from 5:00 p.m. until 1:33 a.m. on August 24, 2013. Det. Martin was operating out of an unmarked rental auto #§ 87(2)(b).*

Memo Book (encl.131-132)

6:30 p.m. re-tactical plan en route to § 87(2)(b) § 87(2)(b) 7:00 p.m. Three under § 87(2)(b) arrest processing at 83rd Precinct.

CCRB Statement

Det. Martin was interviewed at the CCRB on August 26, 2014 (encl.133-135). During the warrant execution, Det. Martin held the ballistic shield in one hand and his gun in the other. His gun was drawn, but possibly held against his chest rather than pointed at anyone in particular.

As Det. Martin approached § 87(2)(b) § 87(2)(b) was either already handcuffed on the ground, or was in the process of being handcuffed.

Det. Martin proceeded directly into § 87(2)(b) and did not stop to observe the rest of § 87(2)(b) § 87(2)(b)'s apprehension. The officer who was apprehending § 87(2)(b) did not have his gun drawn at the time.

Det. Martin did not recall if his gun was drawn as he entered the store. Det. Martin did not see if other officers had their guns drawn and pointed in front of them. As Det. Martin entered § 87(2)(b) he shouted, "Police search warrant!" The individuals inside of the store were already being handcuffed when he entered.

Det. Martin stayed in the store for five minutes before exiting. § 87(2)(b) still outside of § 87(2)(b) Det. Martin stayed with § 87(2)(b) for one minute and then left to go put his equipment back in the van.

Det. Martin did not hear an officer ask § 87(2)(b) to spell the word sovereign.

As a matter of procedure, individuals stopped in relation to a warrant location are frisked and searched, however, Det. Martin could not speak to the specifics as to why § 87(2)(b) was stopped.

NYPD Documents

Search Warrant § 87(2)(b) (encl.151)

The search warrant was signed on § 87(2)(b). The search warrant indicated that there was "probable cause for believing that certain property, namely: marihuana, paraphernalia commonly used to process and package marijuana, documents relating to the illegal trafficking of marijuana and the ownership and occupation of the location, United States currency relating to the illegal trafficking of marihuana...will be found inside § 87(2)(b) first floor, § 87(2)(b) Brooklyn, New York." The warrant authorized the officers to search for the above described property on the persons of § 87(2)(b) who was described as a § 87(2)(b) old, 6'0" tall, black male, weighing approximately 240 pounds, and § 87(2)(b) who was described as a § 87(2)(b) old black female, standing 5'4" tall, weighing approximately 140 years old, if found on the premises.

Property Vouchers (encl.162-171)

Det. Micheli prepared the property vouchers for property recovered from § 87(2)(b) and invoiced vegetative marijuana packed in a Ziploc bag as, clear plastic bag without residues, currency as well as medium Ziploc bags containing smaller Ziploc bags. Det. Kanover invoiced property recovered from § 87(2)(b) including a Ziploc bag containing marijuana.

Arrest for Incident and Disposition (encl. 175-180)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED].

Status of Civil Proceedings (encl.172)

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 25, 2014 with regard to the incident.

Civilian's Criminal History (encl.173-174)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilians' CCRB History (encl.71)

- [§ 87(2)(b)] has filed the following CCRB complaint:

- [§ 87(2)(b)]
[REDACTED]

Subject Officers CCRB History

- Det. Julio Micheli has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 67).
- Det. Ian Cyrus has been a member of the service for 11 years and there are two substantiated CCRB allegations against him. (encl. 68-69).
 - In case 200604886 an allegations of force and abuse of authority were substantiated. Det. Cyrus pled guilty and was docked seven vacation days.
- Det. Thomas Lodico has been a member of the service for nine years and there are two substantiated CCRB allegations against him. (encl. 70).
 - On November 12, 2014, in case 201307349 allegations of a stop and frisk were substantiated. The board recommended command discipline.

Conclusion

Identification of Subject Officers

[§ 87(2)(b)] described the officer who placed the barrel of his gun against his head, stopped him, frisked him, and searched him as a white male, standing 5'9" tall, in his mid-thirties, with a stocky build, and slightly balding. Det. Julio Micheli is a light skinned Hispanic male, standing 5'9" tall, [§ 87(2)(b)] old, weighing 215 pounds, with a low haircut. Det. Micheli acknowledged stopping, frisking, and searching [§ 87(2)(b)] [§ 87(2)(g)]
[REDACTED]

[§ 87(2)(b)] described an officer who he believed deliberately stepped on his finger as a white male, standing 6'3" tall, with a muscular build, and black spikey hair. Det. Lodico is a white male, standing 6'0" tall, weighing 230 pounds, and black hair. [§ 87(2)(g)]
[REDACTED]

[§ 87(2)(b)] described an officer who stated "Sovereign? Spell sovereign. He can't spell sovereign, he has a benefits card" as a black male with a fuzzy mustache. Det. Ian Cyrus was the only black male officer present during the execution of the warrant. Det. Cyrus is a black male with a moustache. [§ 87(2)(g)]
[REDACTED]

[§ 87(2)(b)] alleged that officers, none of which she could describe, entered [§ 87(2)(b)] and shouted, "Get the fuck down." [§ 87(2)(g)]
[REDACTED]

Allegations not pled

[§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]
[§ 87(2)(g)]
[REDACTED]

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Force: Det. Julio Micheli pointed his gun at § 87(2)(b)

§ 87(2)(b) alleged that an officer matching Det. Micheli's description placed the barrel of his gun directly against his head.

§ 87(2)(b) who was working inside of the Chinese restaurant, did not see if the officers were holding anything in their hands or had their guns drawn when they approached the search warrant location. § 87(2)(b) § 87(2)(b) denied seeing any officer with their gun drawn as they approached. § 87(2)(b) was inside of § 87(2)(b) when the officers approached and therefore could not attest to what was occurring outside of the location, however, she acknowledged that officers had their guns drawn and pointed at various individuals inside of the store, but did not allege that the guns were placed directly against anyone.

All the officers interviewed denied placing the barrel of their gun directly against § 87(2)(b)'s head. Det. Micheli acknowledged pointing his gun at § 87(2)(b) as he approached him, but at a distance of ten feet. Det. Micheli holstered his weapon as he traversed the ten feet to place § 87(2)(b) in handcuffs.

While *PD v. Gliner, OATH Index No. 955/00* (Sept. 6, 2000) (encl.1-20) allows officers wide latitude in drawing their weapons, especially when they feel threatened or in a potentially dangerous situation.

§ 87(2)(g)

§ 87(2)(g)

therefore it is recommended that **Allegation A be closed as Unsubstantiated.**

Allegation B- Abuse of Authority: Det. Julio Micheli stopped § 87(2)(b)

§ 87(2)(b) was stopped by Det. Micheli in front of § 87(2)(b) immediately prior to the execution of a valid search warrant at the location.

According to *Bailey v. United States, 185 L. Ed. 2d 19* (2013) (encl.39-66), an officer may detain an individual in the immediate vicinity of a premise to be searched pursuant to the execution of a search warrant. According to *United States v. Gildersleeve 2013 U. S. Dist. LEXIS 112038* (2013) (encl. 32-66). the immediate vicinity is established to be within 100 to 200 feet of the premise being searched.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B be closed as Exonerated.**

Allegation C- Abuse of Authority: Det. Julio Micheli frisked § 87(2)(b)

Allegation D- Abuse of Authority: Det. Julio Micheli searched § 87(2)(b)

Det. Micheli frisked and searched § 87(2)(b) after placing him in handcuffs in front of § 87(2)(b)

According to *Ybarra v. Illinois 62 L. Ed. 2d 238* (encl.66a-66m), an officer is not permitted to frisk an individual for weapons on less than reasonable suspicion that the person frisked possesses a weapon, even when that individual is on the premises where an authorized narcotics search is taking place.

In the Matter of James L., 133 A. D. 2d 460 (App. Div. 2nd Dep't 1987) (encl.67n-67o) states that an officer is not permitted to search an individual without a reasonable belief that the individual possess a weapon, even if that individual happens to be on the premises where an authorized narcotics search is taking place.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations C and D be closed as Substantiated.**

Allegation E- Abuse of Authority: Det. Ian Cyrus entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

it is recommended that **Allegation E be closed as Exonerated.**

Allegation F- Discourtesy: Officers spoke rudely to § 87(2)(b) and § 87(2)(b)

As discussed in the officer identification section, because § 87(2)(b) was unable to describe any of the officers who shouted, "Get the fuck down," it is recommended that **Allegation F be closed as Officers Unidentified.**

Allegation G-Force: Det. Thomas Lodico stepped on § 87(2)(b)'s finger.

§ 87(2)(b) alleged that while he was in handcuffs sitting on the ground, an officer matching Det. Lodico's description stepped on his finger purposefully. All the officers interviewed denied stepping on § 87(2)(b)'s finger. The witnesses interviewed did not attest to this action.

§ 87(2)(g)

It is therefore recommended that **Allegation G be closed as Unsubstantiated.**

Allegation H-Discourtesy: Det. Ian Cyrus spoke rudely to § 87(2)(b)

After his arrest, § 87(2)(b) began to speak about his "sovereign rights." In response an officer matching Det. Cyrus's description allegedly said "Sovereign? Spell sovereign. He can't spell sovereign, he has a benefits card."

Det. Micheli corroborated that § 87(2)(b) spoke about his sovereign rights, but denied that any officer responded to these comments or asked him to spell the word. Det. Cyrus denied the allegation

§ 87(2)(g)

it is therefore recommended that **Allegation H be closed as Unsubstantiated.**

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date